

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
WILLIAM SURIEL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER PIERRE
FONTAINE, BADGE NUMBER UNKNOWN,
LIEUTENANT PETER O'NEILL, BADGE NUMBER
UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO THE 60TH PRECINCT,Defendants.
-----XIndex No.:
Date Purchased:Plaintiff designates Kings
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**

Plaintiff resides at

9000 Old River Road
Marcy, New York 13403

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
February 17, 2014

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

WILLIAM SURIEL

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER PIERRE FONTAINE,
BADGE NUMBER UNKNOWN,
LIEUTENANT PETER O'NEILL, BADGE
NUMBER UNKNOWN, c/o
60th Precinct
2951 West 8th Street
Brooklyn, New York, 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER PIERRE
FONTAINE, BADGE NUMBER UNKNOWN,
LIEUTENANT PETER O'NEILL, BADGE NUMBER
UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO THE 60TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff WILLIAM SURIEL by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.
3. That at all times hereinafter mentioned Defendant POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.
4. That at all times hereinafter mentioned Defendant POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned Defendant POLICE OFFICER PIERRE

FONTAINE, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Kings, City of New York, and under the authority of his office as a police officer for said county and city.

6. That at all times hereinafter mentioned Defendant LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned Defendant LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendant LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Kings, City of New York, and under the authority of his office as a police officer for said county and city.

9. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Kings, City of New York, and under the authority of their office as police officers for said county and city.

12. That on July 9, 2011, Plaintiff WILLIAM SURIEL was lawfully on Coney Island Beach, in the County of Kings, City and State of New York, when several nearby beach-goers became involved in a verbal disagreement that escalated into a physical altercation.

13. That, at the above time and place, members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, responded to the aforementioned disturbance.

14. That at the aforementioned time and place, Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, accosted Plaintiff WILLIAM SURIEL, and without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally abused Plaintiff.

15. That, as a result of this unprovoked assault, Plaintiff WILLIAM SURIEL sustained injuries including, *inter alia*, blunt head trauma, as well as lacerations and bruises to the face, eyes, head, and neck.

16. That, following the unprovoked assault, Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT handcuffed Plaintiff WILLIAM SURIEL, and placed him under arrest for Assault with Intent to Cause Physical Injury, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

17. That Plaintiff WILLIAM SURIEL was then transported to Coney Island Hospital (2601 Ocean Parkway, Brooklyn, New York 11235) for initial treatment of his injuries. Thereafter plaintiff was transported to the 60th Precinct (2951 West 8th Street, Brooklyn, New York, 11224) and then to Brooklyn Central Booking (120 Schermerhorn Street, Brooklyn, New York 11201) for arraignment. Following arraignment, Plaintiff WILLIAM SURIEL was taken to Rikers Island.

18. That Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER

UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, initiated criminal proceedings against Plaintiff WILLIAM SURIEL despite Defendants' knowledge that they lacked probable cause to do so.

19. That Plaintiff WILLIAM SURIEL was held, detained and imprisoned from July 9, 2011, to October 10, 2011, by Defendants CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, before being released following the posting of bail.

20. That on or about February 25, 2013, by Order of the Honorable Matthew Sciarrino, Jr., J.S.C., all criminal charges (Docket No. 2011KN055144) against Plaintiff WILLIAM SURIEL were dismissed.

21. As a result of the foregoing, Plaintiff WILLIAM SURIEL sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

22. Plaintiff WILLIAM SURIEL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

23. The level of force employed by Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, was objectively unreasonable and in violation of Plaintiff WILLIAM SURIEL's constitutional rights.

24. As a result of the aforementioned conduct of Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED

TO THE 60TH PRECINCT, Plaintiff WILLIAM SURIEL was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

25. Plaintiff WILLIAM SURIEL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

26. That at the aforementioned time and place, Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, placed Plaintiff WILLIAM SURIEL under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

27. That Plaintiff WILLIAM SURIEL had not committed any offense and Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

28. That Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff WILLIAM SURIEL and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff WILLIAM SURIEL and such actions were committed in bad faith.

29. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff WILLIAM SURIEL and such actions were

committed in bad faith.

30. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff WILLIAM SURIEL was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

31. As a further result of the above-described acts, Plaintiff WILLIAM SURIEL was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

32. Plaintiff WILLIAM SURIEL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. That Plaintiff WILLIAM SURIEL was falsely imprisoned from July 9, 2011, to October 10, 2011, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

34. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER PIERRE FONTAINE,

BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, intended to confine Plaintiff WILLIAM SURIEL and Plaintiff WILLIAM SURIEL was conscious of the confinement, and Plaintiff WILLIAM SURIEL did not consent to the confinement.

35. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff WILLIAM SURIEL and damaging Plaintiff WILLIAM SURIEL in his reputation and depriving him of his liberty.

36. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff WILLIAM SURIEL suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

37. Plaintiff WILLIAM SURIEL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

38. Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

39. That the aforementioned customs, policies, usages, practices, procedures and rules of

the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

40. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff WILLIAM SURIEL.

41. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff WILLIAM SURIEL as alleged herein.

42. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff WILLIAM SURIEL as alleged herein.

43. Defendants POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff WILLIAM SURIEL's constitutional rights.

44. All of the foregoing acts by defendants deprived Plaintiff WILLIAM SURIEL of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

45. Plaintiff WILLIAM SURIEL repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

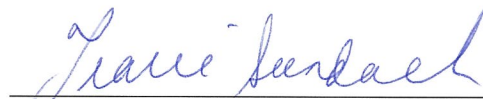
46. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff WILLIAM SURIEL's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

47. As a result of the aforementioned conduct of Defendants, Plaintiff WILLIAM SURIEL's constitutional rights were violated and he sustained injuries.

48. As a result of the foregoing, Plaintiff WILLIAM SURIEL is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff WILLIAM SURIEL demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER PIERRE FONTAINE, BADGE NUMBER UNKNOWN, LIEUTENANT PETER O'NEILL, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 60TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
February 17, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

WILLIAM SURIEL

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

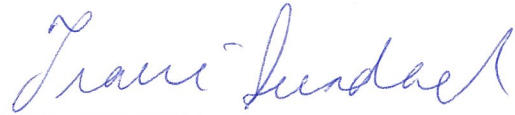
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
February 17, 2014



TRACIE A. SUNDACK